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Case Number: 24TRCV01962 Hearing Date: September 2, 2026 Dept: P

Motion for Leave to File a First Amended Complaint

Moving Party: Plaintiff Haifa Nakib

Responding Party: Defendant Micaela Setting

RULING

The court considered the moving papers and opposition. Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

PROCEDURAL BACKGROUND

On June 11, 2024, Plaintiff Haifa Nakib ("Plaintiff") filed a complaint against Micaela Setting ("Defendant") and DOES 1 through 100, inclusive, alleging one cause of action for Premises Liability with two counts for (1) Negligence and (2) Willful Failure to Warn pursuant to Civil Code Section 846.

On December 10, 2025, Defendant filed a Motion for Summary Judgment, which the court denied on June 9, 2026.

On August 5, 2026, Plaintiff filed the instant motion. On August 13, 2026, Defendant filed an opposition.

FACTUAL BACKGROUND

Plaintiff alleges that on March 6, 2023, Plaintiff was working as a dog groomer, providing service to Defendant when Defendant's dog bit Plaintiff's right hand. (Complaint, p. 4.)

LEGAL STANDARD

Under Code of Civil Procedure Section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial.

(Code Civ. Proc., Section 576.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or

added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

DISCUSSION

Moving Party’s Argument

Plaintiff seeks to add an additional cause of action for Strict Liability pursuant to Civil Code Section 3342, based on the same facts alleged in the original complaint. Plaintiff argues that her proposed first amended complaint will not add any new facts or new parties. Plaintiff argues that she has acted diligently because she brings the instant motion promptly following the court’s June 9, 2026 ruling denying Defendant’s Motion for Summary Judgment and while discovery is ongoing. Next, Plaintiff argues that Defendant will not be prejudiced because the Strict Liability cause of action is based on the same facts alleged in the initial complaint and discovery can encompass Plaintiff’s new legal theory without imposing an undue burden on Defendant. Finally, Plaintiff argues that granting leave to amend will ensure that all of Plaintiff’s claims rooted in the March 6, 2023 incident are adjudicated together in one proceeding.

Opposing Party’s Argument

Defendant argues that Plaintiff’s request is not based on newly-discovered facts, Plaintiff delayed in bringing the instant motion, and Defendant will be substantially prejudiced if the court grants Plaintiff leave to amend. Defendant argues that Plaintiff’s delay in seeking leave to amend is unwarranted because Plaintiff’s complaint was filed in June 2024 and Plaintiff waited until August 2026 to request leave to add a Strict Liability cause of action. Defendant argues that Plaintiff referred to strict liability in her opposition to Defendant’s Motion for Summary Judgment, indicating that Plaintiff was aware of the theory and chose not to plead it until after Defendant’s motion was denied. Next, Defendant argues that Plaintiff’s proposed amendment would substantially prejudice Defendant because Defendant would be unable to seek summary judgment or summary adjudication directed at Plaintiff’s new cause of action within statutory timing limits. Defendant argues that if leave is granted at the September 2, 2026 hearing and trial is set for December 7, 2026, Defendant will have minimal time before discovery cutoff dates to conduct discovery responsive to the strict-liability framework. Finally, Defendant argues that Plaintiff’s supporting declaration fails to state when the facts giving rise to the proposed amendment were discovered and why the request for leave to amend was not made earlier.

Merits of the Motion

Plaintiff seeks leave to file a first amended complaint to add a Strict Liability cause of action, pursuant to Code of Civil Procedure Section 3342. Plaintiff’s counsel declares that Plaintiff did not seek leave to amend to add a Strict Liability cause of action earlier because “Defendant asserted the veterinarian’s rule as a complete bar to Plaintiff’s premises liability cause of action in her Motion for Summary Judgment,” and thus Plaintiff “did not plead a statutory strict liability cause of action that appeared to be subject to the same potential bar.” (Halpern Decl., ¶ 3.) Plaintiff’s counsel declares that the instant motion is

brought following the court's June 9, 2026 denial of Defendant's Motion for Summary Judgment. (Halpern Decl., ¶ 4.)

Plaintiff has attached a copy of the proposed First Amended Complaint and Strict Liability cause of action as Exhibits A and B to Plaintiff's counsel's declaration. However, as observed by Defendant, Plaintiff's counsel's declaration does not identify when the facts giving rise to the amended allegations were discovered. Instead, Plaintiff's counsel declares that the proposed Strict Liability cause of action is based on the March 6, 2023 incident involving Defendant's dog. (Halpern Decl., ¶ 5.) In her moving papers, Plaintiff repeatedly acknowledges that the newly proposed cause of action is based on the same facts that were available to Plaintiff when she filed her original complaint. Further, Plaintiff's counsel acknowledges that Plaintiff considered pleading a Strict Liability cause of action prior to the court's ruling on Defendant's Motion for Summary Judgment. (Halpern Decl., ¶ 3.)

The court finds that Plaintiff has not explained why the instant motion was not brought sooner. Instead, Plaintiff did not bring the instant motion until more than two years after Plaintiff filed her original complaint, constituting an unwarranted delay.

However, an insufficient explanation for a delay in seeking amendment is not, by itself, sufficient cause to deny a motion to amend the complaint. "Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation." (Solit, supra, 68 Cal.App.4th at 1448.)

Here, Defendant argues that Defendant will be substantially prejudiced if Plaintiff is granted leave to file her proposed First Amended Complaint. Plaintiff's motion is scheduled for hearing on September 2, 2026, and trial is set to begin on December 7, 2026, approximately three months later. However, because the amendment does not seek to add any additional factual allegations, but rather a legal basis for recovery, the court finds that Defendant would have sufficient time to respond to Plaintiff's newly-alleged cause of action.

Therefore, Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

The FAC is deemed filed and served today. Plaintiff is ordered to separately file the FAC within 5 court days. Defendant is ordered to answer or announce that the previously filed answer is responsive to the FAC within 30 days. Plaintiff is ordered to give notice of ruling.